

# Posttrial Motion Hearing Transcript

## December 8, 2025

United States District Court for the Western District of North Carolina Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. Civil Action No. SYN-WDNC-24-CV-0520

Judge Miriam D. Carver called Granite Heron's Rule 50(b) and Rule 59 motion for argument. Avery Thorn appeared as fictional courtroom clerk. Eli Mercer argued for Granite Heron; Maya Holt argued for Blue Ember. The Court confirmed that the original judgment entered October 15 for 3.9 million dollars and that the posttrial motion was filed November 10.

THE COURT: The Rule 50 request now asks me to replace the jury's 300,000-dollar mitigation deduction with 1.5 million dollars. Both pre-verdict motions said causation only and said mitigation remained for the jury. I want counsel to address first whether this is a renewed ground at all.

MR. MERCER: We accept the wording. Our position is that avoidable delay narrows the same caused-loss issue.

MS. HOLT: The wording does more than omit mitigation. It excludes that affirmative defense. Rule 50(b) cannot reverse the trial choice after the jury answers.

## **Argument on Rule 50 preservation**

THE COURT: Mr. Mercer, where before submission did Granite Heron ask for judgment that the Cobalt Finch evidence compelled a particular reduction?

MR. MERCER: It did not use that request. The causal motions challenged the amount attributable to the event, and the capacity proof showed a limit on that amount. We submit the issue is continuous even though the motion left the numerical answer for the jury.

THE COURT: The October 14 paper also says the carrier did not contend the full reduction was compelled. How did Blue Ember receive notice of a legal insufficiency it could cure?

MR. MERCER: The defense, expert proof, instructions, and verdict question supplied practical notice. We recognize the Court may view the express disclaimer as controlling.

THE COURT: And a general reservation is not your answer?

MR. MERCER: Correct. We rely on the relationship between causal delay and avoidable delay, not on boilerplate. If the Court rejects that relationship for renewal purposes, our JMOL request fails, but Rule 59 remains independently available.

## **Blue Ember's preservation response**

MS. HOLT: Blue Ember had the burden on caused gross loss. Granite Heron had the burden on unreasonable mitigation and amount. Separate instructions and verdict questions reflected that difference. The defense expressly declined to seek mitigation judgment twice, so there was no occasion to reopen or address an asserted legal gap.

THE COURT: Does a same-damages principle ever permit different supporting arguments at renewal?

MS. HOLT: Yes, when the motions concern the same issue and adequate notice remains. Here the first issue was whether the excursion caused loss; the later issue is whether Blue Ember reasonably reduced loss after it arose. Granite Heron told everyone the latter would remain factual.

THE COURT: If I agree with you on Rule 50, do I lose authority to consider the weight of mitigation evidence under Rule 59?

MS. HOLT: No. We oppose a new trial on the merits, but the standards differ. Lack of Rule 50 preservation prevents judgment as a matter of law; it does not automatically bar a timely new-trial request.

## **Weight, conditional ruling, and scope**

THE COURT: Turning to Rule 59, why is 300,000 dollars outside the permissible weight of this evidence?

MR. MERCER: Real capacity, relevant capability, a concrete transfer plan, and a large schedule advantage support 1.8 million dollars of avoidance. Subtracting the entire 300,000-dollar incremental estimate yields 1.5 million. The jury gave the opportunity too little effect.

MS. HOLT: Calder also confirmed unfinished qualification, elevated risk, no numerical success probability, and no guarantee. Jurors could accept some benefit while rejecting Park's full premise. Brooks explained that middle ground.

THE COURT: If I grant JMOL, Rule 50(c) requires a conditional new-trial ruling. Why should a retrial include gross damages rather than mitigation alone?

MR. MERCER: Gross delay supplies the ceiling and direct categories are independently challenged. The monetary issues fit together.

MS. HOLT: No retrial is warranted. If one is ordered, liability and causation are distinct and fixed. The special verdict prevents any need to revisit the Fletcher event.

## **Submission of motion**

The Court reviewed the offer chain, qualification file, damages schedule, mitigation model, both Rule 50(a) motions, special verdict, original judgment, and posttrial briefs. Counsel agreed that the record contained no other pre-verdict JMOL filing and that the oral presentation matched the written causation-only boundary.

THE COURT: I will take the motion under advisement. Any order granting renewed judgment must confront the express motion language, identify the supported mitigation amount, conditionally rule on the new-trial request, and explain scope. Any Rule 59 ruling must rest on an independent weight assessment rather than a supposed automatic consequence of preservation.

The Court asked the parties to notify the clerk immediately of a calculation error in the cited schedules but prohibited supplemental merits briefing without leave. No party requested an evidentiary reopening. The hearing concluded on December 8, 2025. The fictional reporter certified that this transcript reflects the argument and bench questions and supplied no substantive correction.